

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

— vs. —

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

COMPLAINANTS' MOTION TO ENLARGE TIME TO FILE REMAND BRIEF

Complainants MAVL CAPITAL, INC., IAM & AL GROUP INC., and MAXIM OSTROVSKIY ("Complainants"), by and through their attorney Marcus A. Nussbaum, Esq., hereby move for an Order pursuant to Rules 25(4), 69, 71, 102 and 105 of the Commission's Rules of Practice and Procedure, 46 C.F.R. §§ 502.24(4), 502.69, 502.71, 502.102 and 502.105, to enlarge the deadline for the filing of the parties' Remand Briefs in this matter. For the reasons set forth herein, complainants seek to enlarge all dates in the current briefing schedule by fifteen (15) days.

On February 22, 2021, counsel for complainants attempted to consult with counsel for respondents regarding this motion, and was unable to reach counsel by phone to discuss the matter. This motion is being filed before the expiration of the filing date sought to be enlarged and pursuant to Rule 102(a), reasonable grounds for the filing of this motion less than seven days of the due date for the filing of the Remand Briefs is set forth below. Additionally, and pursuant to Rule 102(a), good cause exists to grant this motion for reasons that follow.

RELEVANT PROCEDURAL HISTORY

1. On October 29, 2020, the Federal Maritime Commission (FMC) issued a Memorandum Opinion and Order (the “Order”) which addressed Complainants’ Exceptions to the Administrative Law Judge’s *sua sponte* dismissal of claims alleging that Respondents Marine Transport Logistics, Inc. (“MTL”) and Dmitry Alper violated 46 U.S.C. §§ 41102(c) and 41104(a)(3) and (10). The claims were dismissed pursuant to the ALJ’s Initial Decision Partially Dismissing the Complaint of January 17, 2017 (the “ID”).

2. On December 10, 2020, the Presiding Officer issued a Remand Scheduling Order directing the complainants to file their Remand Brief, Proposed Findings of Fact, and Appendix, on or before January 27, 2021.

3. On February 5, 2021, the Presiding Officer issued an Order Denying Complainants’ Motion for Discovery Related Sanctions, and which set down a new briefing schedule for the filing of the Remand Briefs. That Order directed Complainants to file their Remand Brief, Proposed Findings of Fact, and Appendix, on or before February 22, 2021, Respondents’ Opposition by March 22, 2021, and Complainants’ Reply by April 5, 2021.

4. During the weekend immediately preceding Monday, February 22, 2021 (to wit: on February 21, 2021), the undersigned was informed that an immediate family member tested positive for the COVID-19 virus¹, requiring that the undersigned quarantine.

5. Due to the foregoing, and in compliance with quarantine requirements, the undersigned did not travel to his office where the materials and file pertaining to this matter are currently located, and is awaiting a negative test result.² Those materials are needed in order to complete the complainants’ Remand Brief.

¹ Supporting medical documentation will be provided for *in camera* review if required by the Presiding Officer.

² The CDC’s protocol for quarantine can be found at <https://www.cdc.gov/coronavirus/2019-ncov/if-you-are-sick/quarantine.html>.

ARGUMENT

Reasonable Grounds Exist For the Filing of This Motion Less Than Seven Days of the Due Date for the Filing of the Remand Briefs

6. As stated above, the grounds for the instant requested relief only became apparent yesterday. Accordingly, it is respectfully submitted that the filing of this motion less than seven days of the due date for filing of the Complainants' Remand Brief is "reasonable" under the circumstances.

Good Cause Exists for the Presiding Officer to Enlarge the Time to File Remand Briefs

7. As stated above, the materials and file for this matter are located in the undersigned's office, and the undersigned is unable to retrieve same before the expiration of the February 22, 2021 deadline to file the Remand Brief. Those materials are needed in order to complete the complainants' Remand Brief.

8. The extension of time would confirm that a Decision on Remand will be based upon a full and complete record which includes matters of fact and references to documents in the materials and file located within the undersigned's office and which are inaccessible for reasons set forth above.

9. In light of the foregoing, it is respectfully submitted that an enlargement of time is necessary and proper.

WHEREFORE, Complainants respectfully request that the Commission extend the briefing schedule set forth in the Presiding Officer's February 5, 2021 Order Denying Complainants' Motion for Discovery Related Sanctions, by fifteen (15) days and Order as follows:

- March 9, 2021 Complainants file brief, proposed findings of fact, and appendix.
- April 6, 2021 Respondents file opposition brief, proposed findings of fact and responses to Complainants' proposed findings of fact, and appendix.
- April 20, 2021 Complainants file reply brief and responses to Respondents' proposed findings of fact.

Dated: February 22, 2021
Manalapan, NJ

Respectfully Submitted,

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION TO ENLARGE TIME TO FILE REMAND BRIEF** upon Respondents' Counsel at the following address:

by email to: PeterCipparulo@cipplaw.com, and garry.pogil@gmail.com.

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
Mailing Address: P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: February 22, 2021
Manalapan, NJ